

STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION
320 W. 4th Street, Suite 200, Los Angeles

FACT SHEET
WASTE DISCHARGE REQUIREMENTS
for
OLY MANDALAY BAY GENERAL PARTNERSHIP
OLY MANDALAY BAY SEABRIDGE

NPDES Permit No.: CA0064505
Public Notice No.: R4-2003-0054

FACILITY ADDRESS

Oly Mandalay Bay Seabridge
SW Corner of Wooley & Victoria
Oxnard, CA 93035

FACILITY MAILING ADDRESS

Oly Mandalay Bay Seabridge
600 S. Victoria Avenue A600
Oxnard, CA 93035
Contact: Nick Arenson
Telephone: (805) 382-9244

I. Public Participation

The California Regional Water Quality Control Board, Los Angeles Region (Regional Board) is considering the issuance of waste discharge requirements (WDRs) that will serve as a National Pollutant Discharge Elimination System (NPDES) permit for the above-referenced facility. As an initial step in the WDR process, the Regional Board staff has developed tentative WDRs. The Regional Board encourages public participation in the WDR adoption process.

A. Written Comments

The staff determinations are tentative. Interested persons are invited to submit written comments concerning these tentative WDRs. Comments should be submitted either in person or by mail to:

Executive Officer
California Regional Water Quality Control Board
Los Angeles Region
320 West 4th Street, Suite 200
Los Angeles, CA 90013

To be fully responded to by staff and considered by the Regional Board, written comments should be received at the Regional Board offices by 5:00 p.m. on October 20, 2003.

B. Public Hearing

The Regional Board will hold a public hearing on the tentative WDRs during its regular Board meeting on the following date and time and at the following location:

Date: November 6, 2003
Time: 9:00 a.m.
Location: Metropolitan Water District, Board Room
700 North Alameda Street
Los Angeles, CA

Interested persons are invited to attend. At the public hearing, the Regional Board will hear testimony, if any, pertinent to the discharge, WDRs, and permit. Oral testimony will be heard; however, for accuracy of the record, important testimony should be in writing.

C. Waste Discharge Requirements Appeals

Any aggrieved person may petition the State Water Resources Control Board to review the decision of the Regional Board regarding the final WDRs. The petition must be submitted within 30 days of the Regional Board's action to the following address:

State Water Resources Control Board, Office of Chief Counsel
ATTN: Elizabeth Miller Jennings, Senior Staff Counsel
1001 I Street, 22nd Floor
Sacramento, CA 95814

D. Information and Copying

The Report of Waste Discharge (ROWD), related documents, tentative effluent limitations and special conditions, comments received, and other information are on file and may be inspected at 320 West 4th Street, Suite 200, Los Angeles, California 90013, at any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Los Angeles Regional Board by calling (213) 576-6600.

E. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Regional Board, reference this facility, and provide a name, address, and phone number.

II. Introduction

The Discharger has filed a report of waste discharge (ROWD) and has applied for an individual NPDES permit to cover the discharge of a maximum of 10 million gallons per day (MGD) treated groundwater from the Seabridge Channel Islands Harbor site to the Edison Canal and the Harbor Island Canal, a portion of Channel Islands Harbor.

III. Description of Facility and Waste Discharge

The Discharger is developing 33.4 acres located at the southwest corner of Wooley and Victoria Avenue in the city of Oxnard, California (Figure 1). The land area will be developed to include 274 single-family and 42 multi-family housing units. An additional 393 residential units and 167,000 square feet of commercial space are planned for a 35 acre visitor serving/mixed used area. The remainder of the 220-acre project site will be reserved for open water, parks, and recreation, and necessary infrastructure improvements.

Construction will be completed in phases throughout the five-year construction schedule. Dewatering activities are expected to occur in six to eight month windows over the term of the construction project. The Discharger plans to dewater a maximum of 10 MGD of treated groundwater from the shallow unconfined aquifer, which extends to 50 feet. During periods when the maximum amount of water is dewatered, the discharge is expected to be 24 hours per day, seven days per week as needed to maintain dry bottoms for excavation and or recompaction of earth materials. The groundwater will subsequently be pumped into settlement tanks, ponds, baffled Baker tanks, or other filtration devices prior to discharge into the surface waters. Intermittently, periods of zero and/or minimal discharge are anticipated during the project.

The treated groundwater will be discharged to the Harbor Island Canal and the Edison Canal. The locations of the discharge outfalls are (see Figure 2):

<u>Outfall</u>	<u>Receiving Water</u>	<u>Latitude</u>	<u>Longitude</u>
Outfall A	Mandalay Bay Marina	34° 11' 20" North	119° 13' 32" West
Outfall B	Mandalay Bay Marina	34° 11' 20" North	119° 13' 21" West
Outfall C	Mandalay Bay Marina	34° 11' 15" North	119° 13' 18" West
Outfall D	Mandalay Bay Marina	34° 11' 00" North	119° 13' 32" West
Outfall E	Mandalay Bay Marina	34° 11' 01" North	119° 13' 30" West
Outfall F	Mandalay Bay Marina	34° 10' 57" North	119° 13' 17" West
Outfall G	Mandalay Bay Marina	34° 10' 54" North	119° 13' 31" West

The Mandalay Bay Marina is a constructed waterway that connects to the Channel Islands Harbor and the Edison Canal. These two waterways are included in the Miscellaneous Ventura Coastal Streams.

This is a new permit, consequently there is no historical monitoring data for discharges from the site.

IV. Applicable Plans, Policies, Laws, and Regulations

The requirements contained in the proposed Order are based on the requirements and authorities contained in the following:

1. The Federal Clean Water Act (CWA). The federal Clean Water Act requires that any point source discharge of pollutants to a water of the United States must be done in conformance with an NPDES permit. NPDES permits establish effluent limitations that incorporate various requirements of the CWA designed to protect water quality.
2. Title 40, Code of Federal Regulations (40 CFR) – Protection of Environment, Chapter 1, Environmental Protection Agency, Subchapter D, Water Programs, Parts 122-125 and Subchapter N, Effluent Guidelines. These CWA regulations provide effluent limitations for certain dischargers and establish procedures for NPDES permitting, including how to establish effluent limitations, for certain pollutants discharged.
3. On June 13, 1994, the Regional Board adopted a revised *Water Quality Control Plan for the Coastal Watersheds of Los Angeles and Ventura Counties* (Basin Plan). The Basin Plan contains water quality objectives and beneficial uses for inland surface waters and for the Pacific Ocean. The receiving waters for the permitted discharge covered by this permit are the Edison Canal and Harbor Island Canal, a section of the Channel Islands Harbor. The Edison Canal is a waterway which conveys salt water from the Channel Islands Harbor to the Edison Canal Estuary, the Reliant Energy Power Plant, and finally to the Pacific Ocean. The tributary rule states that those waters not specifically listed (generally smaller tributaries) are designated with the same beneficial uses as the streams, lakes or reservoirs to which they are tributary. Hence the beneficial uses of the Edison Canal Estuary were used to determine the applicable and appropriate water quality standards for the Edison Canal. The beneficial uses listed in the Basin Plan for the Edison Canal Estuary are:

Existing: industrial service supply, contact and noncontact recreation, marine habitat, wildlife habitat, and rare, threatened, or endangered species.

The Harbor Island Canal is a portion of the Channel Islands Harbor, a water of the United States. The tributary rule requires that discharges into a surface water must protect downstream uses. Hence, the beneficial uses of the Channel Islands Harbor are also applicable to the Harbor Islands Canal. The beneficial uses of the Channel Islands Harbor as listed in the Basin Plan are:

Existing: industrial service supply, navigation, contact and noncontact recreation, commercial and sport fishing, marine habitat, wildlife habitat.

4. The State Water Resources Control Board (State Board) adopted a *Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Water and Enclosed Bays and*

Estuaries of California (Thermal Plan) on May 18, 1972, and amended this plan on September 18, 1975. This plan contains temperature objectives for inland surface waters.

5. On May 18, 2000, the U.S. Environmental Protection Agency (USEPA) promulgated numeric criteria for priority pollutants for the State of California [known as the *California Toxics Rule* (CTR) and codified as 40 CFR 131.38]. In the CTR, USEPA promulgated criteria that protect the general population at an incremental cancer risk level of one in a million (10^{-6}), for all priority toxic pollutants regulated as carcinogens. The CTR also provides a schedule of compliance not to exceed 5 years from the date of permit renewal for an existing discharger if the Discharger demonstrates that it is infeasible to promptly comply with the CTR criteria.
6. On March 2, 2000, the State Board adopted the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (State Implementation Policy or SIP). The SIP was effective on April 28, 2000, with respect to the priority pollutant criteria promulgated for California by the USEPA through the National Toxics Rule (NTR), and to the priority pollutant objectives established by the Regional Boards in their basin plans, with the exception of the provision on alternate test procedures for individual discharges that have been approved by the USEPA Regional Administrator. The alternate test procedures provision was effective on May 22, 2000. The SIP was effective on May 18, 2000, with respect to the priority pollutant criteria promulgated by the USEPA through the CTR. The SIP requires the dischargers' submittal of data sufficient to conduct the determination of priority pollutants requiring water quality-based effluent limitations (WQBELs) and to calculate the effluent limitations. The CTR criteria for saltwater or human health for consumption of organisms, whichever is more stringent, are used to develop the effluent limitations in this Order to protect the beneficial uses of the Channel Islands Harbor and the Edison Canal Estuary.
7. 40 CFR section 122.44(d)(vi)(A) requires the establishment of numeric effluent limitations to attain and maintain applicable narrative water quality criteria to protect the designated beneficial uses. Where numeric water quality objectives have not been established in the Basin Plan, 40 CFR section 122.44(d) specifies that WQBELs may be set based on USEPA criteria and supplemented, where necessary, by other relevant information to attain and maintain narrative water quality criteria to fully protect designated beneficial uses.
8. State and Federal antibacksliding and antidegradation policies require Regional Board actions to protect the water quality of a water body and to ensure that the waterbody will not be further degraded. The antibacksliding provisions are specified in section 402(o) of the CWA and in 40 CFR, section 122.44(l). Those provisions require a reissued permit to be as stringent as the previous permit with some exceptions where effluent limitations may be relaxed.
9. Effluent limitations are established in accordance with sections 301, 304, 306, and 307 of the CWA, and amendments thereto. These requirements, as they are met, will maintain and protect the beneficial uses of the Channel Islands Harbor and the Edison Canal Estuary.

10. Discharges from this site because of its location relative to the Westport at Mandalay Project is expected to have discharges very similar to those reported at that site. Since, the operations, discharges, and treatment implemented are similar, similar effluent limits and monitoring programs have been prescribed for this permit.

V. Regulatory Basis for Effluent Limitations

The CWA requires point source discharges to control the amount of conventional, nonconventional, and toxic pollutants that are discharged into the waters of the United States. The control of the discharge of pollutants is established through NPDES permits that contain effluent limitations and standards. The CWA establishes two principal bases for effluent limitations. First, dischargers are required to meet technology-based effluent limitations that reflect the best controls available considering costs and economic impact. Second, they are required to meet WQBELs that are developed to protect applicable designated uses of the receiving water.

The CWA requires that technology-based effluent limitations be established based on several levels of controls:

- Best practicable treatment control technology (BPT) is based on the average of the best performance by plants within an industrial category or subcategory. BPT standards apply to toxic, conventional, and nonconventional pollutants.
- Best available technology economically achievable (BAT) represents the best existing performance of treatment technologies that are economically achievable within an industrial point source category. BAT standards apply to toxic and nonconventional pollutants.
- Best conventional pollutant control technology (BCT) is a standard for the control from existing industrial point sources of conventional pollutants including BOD, TSS, fecal coliform, pH, and oil and grease. The BCT standard is established after considering the “cost reasonableness” of the relationship between the cost of attaining a reduction in effluent discharge and the benefits that would result, and also the cost effectiveness of additional industrial treatment beyond BPT.
- New source performance standards (NSPS) that represent the best available demonstrated control technology standards. The intent of NSPS guidelines is to set limitations that represent state-of-the-art treatment technology for new sources.

The CWA requires EPA to develop effluent limitations, guidelines and standards (ELGs) representing application of BPT, BCT, BAT, and NSPS. Section 402(a)(1) of the CWA and 40 CFR 125.3 of the NPDES regulations authorize the use of best professional judgment (BPJ) to derive technology-based effluent limitations on a case-by-case basis where ELGs are not available for certain industrial categories and/or pollutants of concern.

If a reasonable potential exists for pollutants in a discharge to exceed water quality standards, WQBELs are also required under 40 CFR 122.44(d)(1)(i). WQBELs are established after determining that technology-based limitations are not stringent enough to ensure that state water quality standards are met for the receiving water. WQBELs are based on the designated uses of the receiving water, water quality criteria necessary to support the designated uses, and the state's antidegradation policy. For discharges to inland surface waters, enclosed bays, and estuaries, the SIP establishes specific implementation procedures for determining reasonable potential and establishing WQBELs for priority pollutant criteria promulgated by USEPA through the CTR and NTR, as well as the Basin Plan.

There are several other specific factors affecting the development of limitations and requirements in the proposed Order. These are discussed as follows:

1. Pollutants of Concern

The CWA requires that any pollutant that may be discharged by a point source in quantities of concern must be regulated through an NPDES permit. Further, the NPDES regulations and SIP require regulation of any pollutant that (1) causes; (2) has the reasonable potential to cause; or (3) contributes to the exceedance of a receiving water quality criteria or objective. The SIP includes provisions for priority pollutant criteria promulgated by USEPA in the CTR and NTR, and for those priority pollutants outlined in the Basin Plan.

Regional concerns in the Oxnard Forebay groundwater basin include elevated nitrogen from septic systems and agricultural areas. Neither, the Edison Canal Estuary or the Harbor Islands Canal has limits for nitrogen in the Basin Plan. Consequently, this permit does not include a limit for that constituent. However, this permit does include requirements for monitoring nitrogen, boron, chloride, sulfate and total dissolved solids.

2. Technology-Based Effluent Limitations

This Discharger is required to enroll in and comply with all provisions of the State Water Resources Control Board Water Quality Order No. 99-08-DWQ, National Pollutant Discharge Elimination System (NPDES) *General Permit for Storm Water Discharges Associated with Construction Activities* (General Permit). The General Permit includes requirements to develop and implement a Storm Water Pollution Prevention Plan (SWPPP) along with Best Management Practices (BMPs) that will prevent all construction pollutants from contacting storm water and with the intent of keeping all products of erosion from moving off site into receiving waters.

Due to the lack of national ELGs for construction operations and the absence of data available to apply BPJ, and pursuant to 40 CFR 122.44(k), the Regional Board will require the Discharger to develop and implement a *Best Management Practices Plan* (BMPP). The purpose of the BMPP is to establish site-specific procedures that will prevent the discharge of pollutants in treated groundwater. The BMPP should also address non-storm water discharges from outside the facility. In particular, the facility must ensure the discharge of pollutants associated with all onsite activities including equipment operation,

equipment maintenance, vehicular entry and exit is minimized. The combination of the SWPPP and BMPP and existing permit limitations based on past performance and reflecting BPJ will serve as the equivalent of technology-based effluent limitations, in the absence of established ELGs, in order to carry out the purposes and intent of the CWA.

3. Water Quality-Based Effluent Limitations

As specified in 40 CFR 122.44(d)(1)(i), permits are required to include WQBELs for toxic pollutants (including toxicity) that are or may be discharged at levels which cause, have reasonable potential to cause, or contribute to an excursion above any state water quality standard. The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses for the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria (that are contained in other state plans and policies, or USEPA water quality criteria contained in the CTR and NTR). The specific procedures for determining reasonable potential, and if necessary for calculating WQBELs, are contained in the SIP.

The CTR contains both saltwater and freshwater criteria. According to 40 CFR 131.38(c)(3), freshwater criteria apply at salinities of 1 part per thousand (ppt) and below at locations where this occurs 95 percent or more of the time; saltwater criteria apply at salinities of 10 ppt and above at locations where this occurs 95 percent or more of the time; and at salinities between 1 and 10 ppt the more stringent of the two apply. The CTR criteria for saltwater or human health for consumption of organisms, whichever is more stringent, are used to prescribe the effluent limitations in this Order to protect the beneficial uses of the Edison Canal and the Harbor Islands Canal.

(a) Reasonable Potential Analysis (RPA)

In accordance with Section 1.3 of the SIP, the Regional Board will conduct a reasonable potential analysis (RPA) for each priority pollutant with an applicable criterion or objective to determine if a WQBEL is required in the permit. The Regional Board would analyze effluent data to determine if a pollutant in a discharge has a reasonable potential to cause or contribute to an excursion above a state water quality standard. For all parameters that have a reasonable potential, numeric WQBELs are required. The RPA considers water quality objectives outlined in the CTR, NTR, as well as the Basin Plan. To conduct the RPA, the Regional Board must identify the maximum observed effluent concentration (MEC) for each constituent, based on data provided by the Discharger.

Section 1.3 of the SIP provides the procedures for determining reasonable potential to exceed water applicable water quality criteria and objectives. The SIP specifies three triggers to complete a RPA:

- 1) Trigger 1 – If the MEC is greater than or equal to the CTR water quality criteria or applicable objective (C), a limitation is needed. For certain constituents present in this discharge that were nondetect, the MEC was set at the method detection limit consistent with section 1.3 of the SIP.
- 2) Trigger 2 – If $MEC < C$ and background water quality $(B) > C$, a limitation is needed.
- 3) Trigger 3 – If other related information such as CWA 303(d) listing for a pollutant, discharge type, compliance history, etc. indicates that a WQBEL is required.

Sufficient effluent and ambient data are needed to conduct a complete RPA. If data are not sufficient, the Discharger will be required to gather the appropriate data for the Regional Board to conduct the RPA. Upon review of the data, and if the Regional Board determines that WQBELs are needed to protect the beneficial uses, the permit will be reopened for appropriate modification.

(b) Calculating WQBELs

If a reasonable potential exists to exceed applicable water quality criteria or objectives, then a WQBEL must be established in accordance with one of three procedures contained in Section 1.4 of the SIP. These procedures include:

- 1) If applicable and available, use of the wasteload allocation (WLA) established as part of a total maximum daily load (TMDL).
- 2) Use of a steady-state model to derive maximum daily effluent limitations (MDELs) and average monthly effluent limitations (AMELs).
- 3) Where sufficient effluent and receiving water data exist, use of a dynamic model, which has been approved by the Regional Board.

(c) Impaired Water Bodies in 303 (d) List

Section 303(d) of the CWA requires states to identify specific water bodies where water quality standards are not expected to be met after implementation of technology-based effluent limitations on point sources. For all 303(d) listed water bodies and pollutants, the Regional Board plans to develop and adopt TMDLs that will specify WLAs for point sources and load allocations (LAs) for non-point sources, as appropriate.

The USEPA has approved the State's 303(d) list of impaired water bodies. Certain receiving waters in the Los Angeles and Ventura County watersheds do not fully support beneficial uses and therefore have been classified as impaired on the 1998 303(d) list and have been scheduled for TMDL development.

The Edison Canal Estuary and the Channel Islands Harbor is located in the Ventura watershed. The Edison Canal is a man-made channel, used to direct ocean water from the Channel Islands Harbor through Edison Canal Estuary, the Reliant Energy Mandalay Generating Station to the coastal zone of the Pacific Ocean. The Edison Canal, is a tributary to the Edison Canal Estuary. The Edison Canal Estuary is not listed on the 1998 303 (d) list of impaired waterbodies.

The Channel Islands Harbor is located south of the Santa Clara River and is in the immediate vicinity of considerable residential development and some agricultural land. The harbor is home to many recreational boats and two boatyards. Sediment sampling in 1998 revealed elevated contaminant levels for several metals. The Channel Islands Harbor is on the 1998 303 (d) list for lead and zinc. The Bay Protection and Toxic Cleanup Report lists the harbor as a site of concern due to DDT and silver sediment concentrations and sediment toxicity.

(d) Whole Effluent Toxicity

Whole Effluent Toxicity (WET) protects the receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. WET tests measure the degree of response of exposed aquatic test organisms to an effluent. The WET approach allows for protection of the narrative “no toxics in toxic amounts” criterion while implementing numeric criteria for toxicity. There are two types of WET tests: acute and chronic. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and measures mortality, reproduction, and growth.

The Basin Plan specifies a narrative objective for toxicity, requiring that all waters be maintained free of toxic substances in concentrations that are lethal to or produce other detrimental response on aquatic organisms. Detrimental response includes but is not limited to decreased growth rate, decreased reproductive success of resident or indicator species, and/or significant alterations in population, community ecology, or receiving water biota. The existing permit does not contain toxicity limitations or monitoring requirements.

In accordance with the Basin Plan, acute toxicity limitations dictate that the average survival in undiluted effluent for any three consecutive 96-hour static or continuous flow bioassay tests shall be at least 90%, with no single test having less than 70% survival. Consistent with Basin Plan requirements, this Order includes acute toxicity limitations.

In addition to the Basin Plan requirements, Section 4 of the SIP states that a chronic toxicity effluent limitation is required in permits for all discharges that will cause, have the reasonable potential to cause, or contribute to chronic toxicity in receiving waters.

The discharges from the Seabridge at Channel Islands site will occur intermittently during the grading and development of the site, which is estimated to continue for five years. The Discharger will be required to conduct chronic toxicity testing. The Order

includes a chronic testing trigger hereby defined as an exceedance of 1.0 toxic units chronic (TU_c) in a critical life stage test for 100% effluent. (The monthly median for chronic toxicity of 100% effluent shall not exceed 1.0 TU_c in a critical life stage test.) If the chronic toxicity of the effluent exceeds 1.0 TU_c, the Discharger will be required to immediately implement accelerated chronic toxicity testing according to Monitoring and Reporting Program, Item IV.D.1. If the results of two of the six accelerated tests exceed 1.0 TU_c, the Discharger shall initiate a toxicity identification evaluation (TIE).

4. Specific Rationale for Each Numerical Effluent Limitation

Section 402(o) of the Clean Water Act and 40 CFR 122.44(l) require that effluent limitations standards or conditions in re-issued permits are at least as stringent as in the existing permit. The Regional Board has determined that reasonable potential exists for all pollutants that are regulated under the current permit; therefore effluent limitations have been established for these pollutants. Furthermore, the effluent limitations for metals have been modified based on the revised water quality criteria contained in the CTR and the requirements contained in Section 1.4 of the SIP. This modification includes establishing both MDELs and AMELs.

There are currently no applicable Basin Plan objectives for Miscellaneous Ventura Coastal Streams such as the Edison Canal Estuary and Harbor Islands Canal for TDS, sulfate, chloride, boron, and nitrogen. Therefore, no effluent limitations are established for these parameters in the Order.

In compliance with 40 CFR 122.45(f), mass-based limitations have also been established in the proposed Order for conventional and priority pollutants and metals. 40 CFR 122.45(b) requires that a long-term average flow rate is established and used to derive the mass-based limitations in the Order. Since this is a new project, no long-term average flow has been calculated. Instead, staff utilized the maximum permitted flow to calculate the monthly average and daily maximum mass-based limitations.

When calculating the mass for discharges, the appropriate flow, daily maximum for daily maximum mass calculations, and the monthly average flowrate when calculating the monthly average mass should be substituted in the following equation.

Mass (lbs/day) = flow rate (MGD) X 8.34 X effluent limitation (mg/L):
where: mass = mass limit for a pollutant in lbs/day
 effluent limitation = concentration limit for a pollutant, mg/L
 flow rate = discharge flow rate in MGD

The following table provides the final effluent limitations and the associated rationale.

Constituent (units)	Discharge Limitations		Rationale ¹
	Daily Maximum Concentration	Monthly Average Concentration	
pH	6.5 – 8.5	---	BP
Temperature	86°F	---	BPJ
Oil and Grease (mg/L)	15	10	BPJ
BOD ₅ (mg/L)	30	20	BPJ
Total suspended solids (mg/L)	150	50	BPJ
Turbidity (NTU)	50	---	Basin Plan
Settleable solids (ml/L)	0.3	0.1	BPJ
Sulfides (mg/L)	1.0	---	BPJ
Phenols (mg/L)	1.0	---	BPJ
MBAS (mg/L)	0.5	---	Basin Plan
1,1-dichloroethane (µg/L)	5	---	BPJ
1,1-dichloroethylene (µg/L)	6.0	3.2	CTR
1,2-dichloroethane (µg/L)	0.5	---	BPJ
1,4 Dichlorobenzene (µg/L)	5	---	BPJ
Benzene (µg/L)	1.0	---	BPJ
Carbon tetrachloride (µg/L)	0.5	---	BPJ
Ethylbenzene (µg/L)	700	---	BPJ
Ethylene dibromide (µg/L)	0.05	---	BPJ
Methyl tertiary butyl ether (µg/L)	5	---	BPJ
Tetrachloroethylene (µg/L)	5	---	BPJ
Toluene (µg/L)	150	---	BPJ
Trichloroethylene (µg/L)	5	---	BPJ
Vinyl chloride (µg/L)	0.5	---	BPJ
Xylenes (µg/L)	1,750	---	BPJ
Arsenic ² (µg/L)	50	29	BPJ/CTR
Cadmium ² (µg/L)	5	---	BPJ
Chromium III ² (µg/L)	50	---	BPJ
Copper ^{2,3} (µg/L)	4.8	2.3	CTR
Lead ^{2,3} (µg/L)	13	6.6	CTR
Mercury ^{2,3} (µg/L)	0.1	0.05	CTR
Selenium ² (µg/L)	10	---	BPJ
Silver ² (µg/L)	1.9	0.9	CTR
Zinc ² (µg/L)	90	45	CTR
Total petroleum hydrocarbons (µg/L)	100	---	BPJ

¹ CTR = California Toxics Rule, BP = Basin Plan, Thermal Plan, BPJ=Best Professional Judgement.

² Discharge limitations for these metals are expressed as total recoverable.

There are very little data to perform a reasonable potential analysis for most of the toxic parameters. In such circumstance, the SIP recommends that additional data is gathered prior to permit issuance, or that additional data is gathered during the term of the permit.

The data available, which typically consisted of between 1 and 3 sampling events per analyte, was used to perform an RPA for discharges from the site. This is typically not sufficient data to determine reasonable potential. Since, this is a new project no other data was available. The RPA indicates that none of the priority pollutants have reasonable potential to exceed the CTR based WQELs prescribed in the table above.

An adjacent site Westport at Mandalay Bay, which was permitted on December 12, 2002 performed operations identical to the proposed operations covered by this permit. The location of the Westport at Mandalay Bay site is directly adjacent to the Oly Mandalay Bay, Seabridge site. The discharges from the two operations should be identical. Therefore, best professional judgement was used and to incorporate many of the limits from the Westport at Mandalay Bay site to the Oly Mandalay Bay Seabridge site.

5. **Monitoring Requirements**

For regulated parameters, the previous permit for Westport at Mandalay Bay required monthly monitoring for conventional pollutants, quarterly monitoring for a few volatiles and metals, annual monitoring for acute toxicity, and the remaining priority pollutants. According to Section 1.3 of the SIP, if data are unavailable or insufficient to conduct the RPA, the Regional Board must establish interim requirements that require additional monitoring for the pollutants in place of a WQBEL. Upon completion of the required monitoring, the Regional Board must use the gathered data to conduct the RPA and determine if a WQBEL is required. As prescribed in the Monitoring and Reporting Program, the Regional Board shall require periodic monitoring for pollutants for which criteria or objectives apply and for which no effluent limitations have been established.

(a) Effluent Monitoring

Monitoring data from Westport at Mandalay Bay suggests that the Discharger has the potential to exceed the established effluent limitations for turbidity, selenium, lead, copper, mercury, and TPH. Therefore, the Board is requiring monthly monitoring for these constituents and a few others; to ensure compliance with the established effluent limitations. This monitoring schedule is effective upon adoption of the Order by the Regional.

(b) Receiving Water Monitoring

The Discharger will be required to perform general observations of the receiving water when discharges occur during the receiving water monitoring event and report the observations in the quarterly monitoring report. The Regional Board in assessing potential impacts of future discharges will use data from these observations. If no discharge occurred during the observation period, this shall be reported. Observations shall be descriptive where applicable, such that colors, approximate amounts, or types of materials are apparent.

(c) Storm Water Monitoring

The Discharger shall submit a Notice of Intent for coverage by the State Water Resources Control Board Water Quality Order No. 99-08-DWQ, National Pollutant Discharge Elimination System (NPDES) *General Permit for Storm Water Discharges Associated with Construction Activities* (General Permit).